



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-25-50 | County Pocket Annexation #5 – Assigned Zoning
Date: May 27, 2025

Background:

The item for consideration is an Assigned Zoning. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral May 27, 2025
- Public Services Committee June 2, 2025
- Second reading June 9, 2025
- Public Services Committee June 16, 2025
- Third and final reading June 23, 2025

Planning Commission Recommendation:

The Planning Commission heard this item at their May 19, 2025 meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Related Items:

- PUDC-25-50: Annexation

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE ESTABLISHING THE ZONING CLASSIFICATIONS OF: AG – AGRICULTURE; MR – MEDIUM-DENSITY RESIDENTIAL; MUR – MIXED-USE RESIDENTIAL; AND, CB - COMMUNITY BUSINESS, FOR LAND ANNEXED TO THE CITY OF CHEYENNE GENERALLY LOCATED NORTH OF DELL RANGE BOULEVARD, EAST AND WEST OF RIDGE ROAD AND SOUTH OF STOREY BOULEVARD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That in accordance with the calendar year 2022 goal of Governing Body, City staff have petitioned the Governing Body for a zoning map amendment (zone change) for property generally located north of Dell Range Boulevard, east and west of Ridge Road and south of Storey Boulevard in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That Section 2.2.8 of the UDC provides standards and procedures for zoning districts established on land or property currently without a City zone assignment.

Section 3. That on May 19, 2025, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone changes that are the subject of this ordinance, and recommended approval of said zone changes.

Section 4. That the Governing Body of the City of Cheyenne finds that the zone changes that are the subject of this ordinance meet the criteria specified in Section 2.2.8.d of the UDC.

Section 5. That, in accordance with Section 2.2.8, Assigned Zoning, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the zoning classifications of the real properties particularly described below are hereby established as follows: All County A-1 Agricultural and Rural Residential zoned areas are zoned AG Agriculture; all County MR Medium-density Residential zoned areas are zoned MR Medium-density Residential; all County MU Mixed-use zoned areas are zoned Mixed-use Residential; and, Lot 1, North 22' Lot 2, Block 1, Seaver's Subdivision zoned County PUD Planned Unit Development is zoned CB Community Business:

Area A:

TRACTS 1 THRU 8, 30 FEET OF VACATED GROVE AVENUE, TRACT 13 EXCEPT THE WEST 36 FEET, TRACTS 14, 15 AND 16, BLOCK 1 AND THE 16' ALLEY ADJACENT THERETO, HOLLAND SMITH SUBDIVISION, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAINS 2.66 ACRES MORE OR LESS.

Area B:

THE WEST 435 FEET OF THE SOUTH 1/2 OF TRACT 31, DELL RANGE ADDITION, 2ND FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAINS 2.94 ACRES MORE OR LESS.

Area C:

THE NORTH 192.18 FEET OF THE SOUTH 256.24 FEET OF THE WEST 340 FEET OF TRACT 4, DELL RANGE ADDITION, PLUS (RES 961104-02, BOOK 1438, PAGE 1138, 6665.4 SQ') VACATED SUNRISE HILLS DRIVE, LOTS 2, 3, 6 AND 7, BLOCK 5; SUN RISE HILLS ADDITION - FILING NO. 1, PLUS (5100 SQ', RES #961104-02) VACATED SUNRISE HILLS DRIVE, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAINS 1.65 ACRES MORE OR LESS.

Area D:

THE NORTH 140.52 FEET OF THE SOUTH 281.04 FEET OF THE WEST 310 FEET OF TRACT 5 AND THE WEST 200 FEET OF THE NORTH 110.52 FEET OF THE SOUTH 140.52 FEET OF THE WEST 213.84 FEET OF TRACT 5, DELL RANGE ADDITION, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAINS 1.65 ACRES MORE OR LESS.

Area E:

LOT 6, 7, 8, 9 AND 12, DELL RANGE ADDITION, REPLAT OF THE SOUTH 1/2 OF TRACT 13, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAINS 0.84 ACRES MORE OR LESS.

Area F:

ALL THAT PORTION OF TRACT 20, DELL RANGE ADDITION, BEING A SUBDIVISION OF THE WEST HALF OF SECTION 22, TOWNSHIP 14

NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING, DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT OF THE EAST BOUNDARY OF A PARCEL OF LAND DESCRIBED IN THAT CERTAIN DEED RECORDED IN BOOK 1061 AT PAGE 297 OF THE LARAMIE COUNTY RECORDS WHICH POINT BEARS S.0°32.5'E. A DISTANCE OF 105.0 FEET FROM A POINT ON THE NORTH BOUNDARY OF SAID TRACT 20 FROM WHICH THE NORTHEAST CORNER THEREOF BEARS EAST A DISTANCE OF 123.4 FEET (124 FEET IN BOOK 1061 AT PAGE 297) THENCE S. 0°32.5 E. ALONG SAID EAST BOUNDARY A DISTANCE OF 45.0 FEET TO THE SOUTHEAST CORNER OF SAID PARCEL OF LAND MARKED BY REBAR WITH AN ALUMINUM I.D. CAP ATTACHED; THENCE S. 89°59'W. ALONG THE SOUTH BOUNDARY OF SAID PARCEL OF LAND A DISTANCE OF 124.5 FEET (124 FEET IN BOOK 1061 AT PAGE 297) TO A POINT MARKED BY A REBAR WITH AN ALUMINUM I.D. CAP ATTACHED; THENCE N 0°30'W. ALONG THE WEST BOUNDARY OF SAID PARCEL OF LAND A DISTANCE OF 45.0 FEET TO A POINT MARKED BY A NO.5 REBAR WITH AN ALUMINUM I.D. CAP ATTACHED; THENCE N 89°59'E. A DISTANCE OF 124.5 FEET TO THE POINT OF BEGINNING.

SAID AREA CONTAINS 0.15 ACRES MORE OR LESS.

Area G:

LOT 5, COLE HEIGHTS ADDITION AND THE ADJACENT 60' RIGHT OF WAY OF COLE PLACE, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAINS 0.50 ACRES MORE OR LESS.

Area H:

ALL PARCELS AND PLATTED RIGHTS OF WAY LOCATED WITHIN: BEGINNING AT THE SOUTHWEST CORNER OF LOT 5, BLOCK 4, GOULD SUBDIVISION, THENCE SOUTHERLY ALONG THE EASTERLY RIGHT OF WAY OF CINDY AVE. A DISTANCE OF 195.00 FEET TO A POINT ON THE SOUTHERLY RIGHT OF WAY OF EVERTON DR.; THENCE WESTERLY ALONG SAID RIGHT OF WAY 30.00 FEET TO THE NORTHEASTERLY CORNER OF TRACT 20 OF GREEN SUBDIVISION OF THE NORTH HALF OF TRACT 19, DELL RANGE ADDITION; THENCE SOUTHERLY A DISTANCE OF 600.00 FEET ALONG THE EASTERLY BOUNDARIES OF GREEN SUBDIVISIONS OF BOTH THE NORTH HALF AND SOUTH HALF OF TRACT 19, DELL RANGE ADDITION TO A POINT ON THE NORTHERLY RIGHT OF WAY OF GREGG WAY; THENCE WESTERLY ALONG SAID RIGHT OF WAY A DISTANCE OF 700.60 FEET TO THE

SOUTHEASTERLY CORNER OF TRACT 20, DELL RANGE ADDITION; THENCE INCLUSIVE OF EXISTING PARCELS BEING PORTIONS OF TRACT 20, DELL RANGE ADDITION DESCRIBED AS CONTINUING WESTERLY ALONG SAID RIGHT OF WAY A DISTANCE OF 108 FEET TO A POINT; THENCE NORTHERLY 140.00 FEET TO A POINT; THENCE WESTERLY 140.00 FEET TO A POINT ON THE EASTERLY RIGHT OF WAY OF VOSLER PLACE; THENCE NORTHERLY ALONG SAID RIGHT OF WAY 175.00 FEET TO THE SOUTHWESTERLY CORNER OF LOT 1, BLOCK 1, CROW ADDITION; THENCE ALONG THE BOUNDARY OF SAID CROW ADDITION THE FOLLOWING FOUR COURSES; THENCE EASTERLY A DISTANCE OF 124.00 FEET TO A POINT; THENCE NORTHERLY 100 FEET TO A POINT; THENCE EASTERLY 124.00 FEET TO A POINT ON THE WESTERLY RIGHT OF WAY OF RIDGE ROAD; THENCE NORTHERLY ALONG SAID RIGHT OF WAY A DISTANCE OF 195.00 FEET TO THE POINT OF INTERSECTION WITH THE SOUTHERLY RIGHT OF WAY OF BASIN STREET EXTENDED; THENCE EASTERLY 80.00 FEET TO A POINT ON THE EASTERLY RIGHT OF WAY OF RIDGE ROAD; THENCE NORTHERLY ALONG SAID RIGHT OF WAY, BEING THE WESTERLY BOUNDARY OF GOULD SUBDIVISION, A DISTANCE OF 650 FEET TO THE NORTHWESTERLY CORNER OF LOT 5, BLOCK 2, GOULD SUBDIVISION; THENCE EASTERLY ALONG THE SOUTHERLY RIGHT OF WAY OF CARLA DRIVE A DISTANCE OF 1483.80 FEET TO THE NORTHEASTERLY CORNER OF LOT 5, BLOCK 1, SEAVER SUBDIVISION; THENCE THE FOLLOWING THREE COURSES ALONG THE BOUNDARIES OF SEILOFF ADDITION, THENCE SOUTHERLY 180.02 FEET; THENCE EASTERLY 68.00 FEET; THENCE NORTHERLY 180.02 FEET TO THE SOUTHERLY RIGHT OF WAY OF CARLA DRIVE; THENCE CONTINUING EASTERLY ALONG SAID SOUTHERLY RIGHT OF WAY A DISTANCE OF 315.40 FEET TO THE NORTHEASTERLY CORNER OF LOT 1, BLOCK 1, SEAVERS SUBDIVISION; THENCE SOUTHERLY ALONG THE WESTERLY RIGHT OF WAY OF COLLEGE DRIVE A DISTANCE OF 600.00 FEET TO THE SOUTHEASTERLY CORNER OF LOT 2, BLOCK 2, SEAVERS SUBDIVISION; THENCE WESTERLY 389.00 FEET ALONG THE NORTHERLY RIGHT OF WAY OF EVERTON DRIVE TO THE SOUTHWESTERLY CORNER OF LOT 3, BLOCK 2, SEAVERS SUBDIVISION; THENCE NORTHERLY 330.00 FEET TO THE SOUTHEASTERLY CORNER OF DONOVAN SUBDIVISION; THENCE WESTERLY A DISTANCE OF 233.80 FEET ALONG THE NORTHERLY RIGHT OF WAY OF VICTORIA DRIVE TO THE SOUTHEASTERLY CORNER OF LOT 2, BLOCK 1, GOULD SUBDIVISION 2ND FILING; THENCE SOUTHERLY A DISTANCE OF 195.00 FEET TO THE SOUTHEASTERLY CORNER OF LOT 1, BLOCK 4, GOULD SUBDIVISION; THENCE WESTERLY A DISTANCE OF 120.00 FEET TO THE SOUTHWESTERLY CORNER OF SAID LOT 1, BLOCK 4, GOULD SUBDIVISION; THENCE SOUTHERLY A DISTANCE OF 135.00 FEET TO THE SOUTHEASTERLY CORNER OF LOT 9, BLOCK 4, GOULD SUBDIVISION; THENCE

WESTERLY A DISTANCE OF 120.00 FEET ALONG THE NORTHERLY
RIGHT OF WAY OF EVERTON DRIVE TO THE SOUTHWESTERLY
CORNER OF SAID LOT 9; THENCE NORTHERLY A DISTANCE OF 135.00
FEET TO THE NORTHWESTERLY CORNER OF SAID LOT 9; THENCE
WESTERLY A DISTANCE OF 360.00 FEET TO THE POINT OF BEGINNING.

SAID AREA CONTAINS 34.17 ACRES MORE OR LESS.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 5 upon the effective date of this Ordinance as specified by Section 8.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

May 19, 2025

STAFF REPORT

FILE: PUDC-25-50: County Pocket Annexation #5. – Assigned Zoning

LOCATION: North of Dell Range Boulevard, east and west of Ridge Road and south of Storey Boulevard.

REQUEST: Assigning City zones to properties that the City is annexing.

ANNEXATION APPLICANT: City of Cheyenne

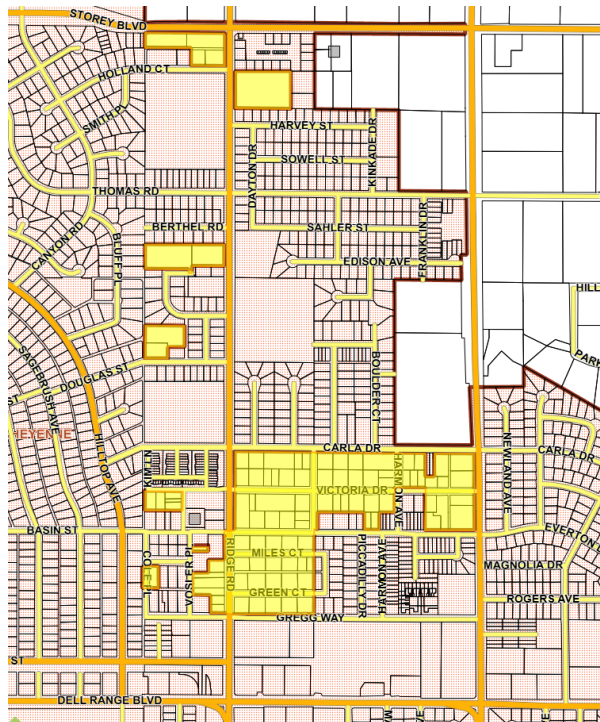
OWNER: Various

ZONING: County A-1, MR, MU, and PUD

FUTURE LAND USE: Urban Residential and Mixed-use Residential.

PURPOSE: To establish a City zoning district concurrent with annexation.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the assigned zoning for land north of Dell Range Boulevard, east and west of Ridge Road and south of Storey Boulevard to AG Agriculture, MR Medium-density Residential, MUR Mixed-Use Residential, and CB Community Business as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.8 Assigned Zoning

BACKGROUND:

The City is annexing parcels that are 100% surrounded by current City Limits as part of Councils goals to annex county pockets. Annexation of a parcel requires a city zone to be established. Per UDC 2.2.8 a zone will be assigned based on the underlying county zone and per the policy document adopted by the city.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

- 1) The assigned zone is the most analogous City zone to the current zone when considering allowed uses. Zoning for standard County zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis. (UDC 2.2.8.d.1)**

The underlying county zones are A-1 Agricultural and Rural Residential, MR Medium-density Residential, MU Mixed-use and PUD Planned Unit Development. The most analogous city zones are AG-Agriculture, MR Medium-density Residential and MUR Mixed-use Residential according to the policy document for the corresponding county zones. The PUD was analyzed by staff and the closest city zone was determined to be the CB Community Business zone. The CB zone would allow most of the current permitted uses by the PUD.

The Assigned Zoning policy document is attached to the staff report as attachment number two. The County PUD is also attached as attachment number three.

Establishment of the City zone matches the policy document; therefore, the item **complies** with review criterion 1.

STAFF REVIEW:

Through the review process, there were no comments.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.8.(d).

ALTERNATIVES:

1. Recommend approval of the Assigned Zoning as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the Assigned Zoning subject to conditions or modifications.
3. Recommend denial of the Assigned Zoning based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Assigned Zoning until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

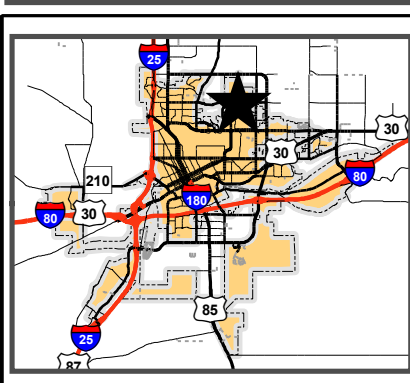
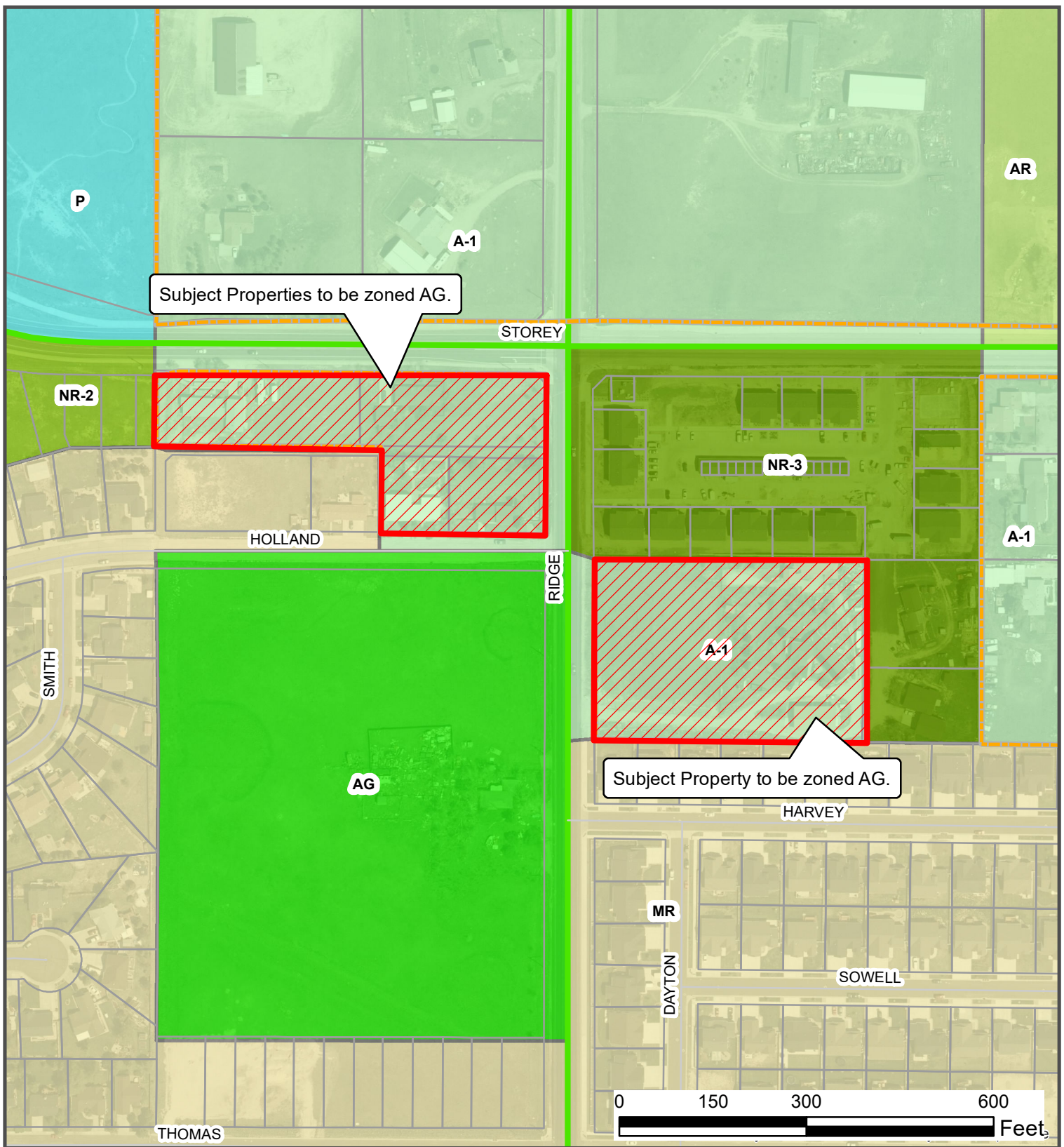
If the Commission acts contrary to staff's recommendation or recommends conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for their recommendation.

STAFF RECOMMENDATION:

Staff recommends approval of the assigned zoning for land north of Dell Range Boulevard, east and west of Ridge Road and south of Storey Boulevard to AG Agriculture, MR Medium-density Residential, MUR Mixed-Use Residential, and CB Community Business as shown in the attached zone change map, noting that the project meets the review criteria for approval.

ATTACHMENTS:

1. Zoning Map
2. Assigned Zoning Policy Document
3. Use Differences

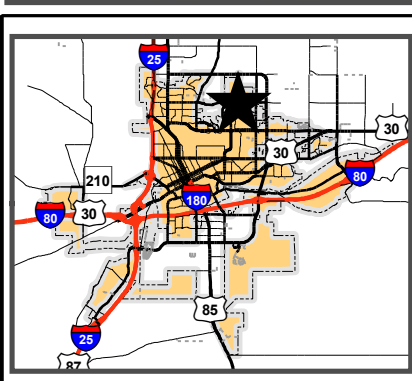
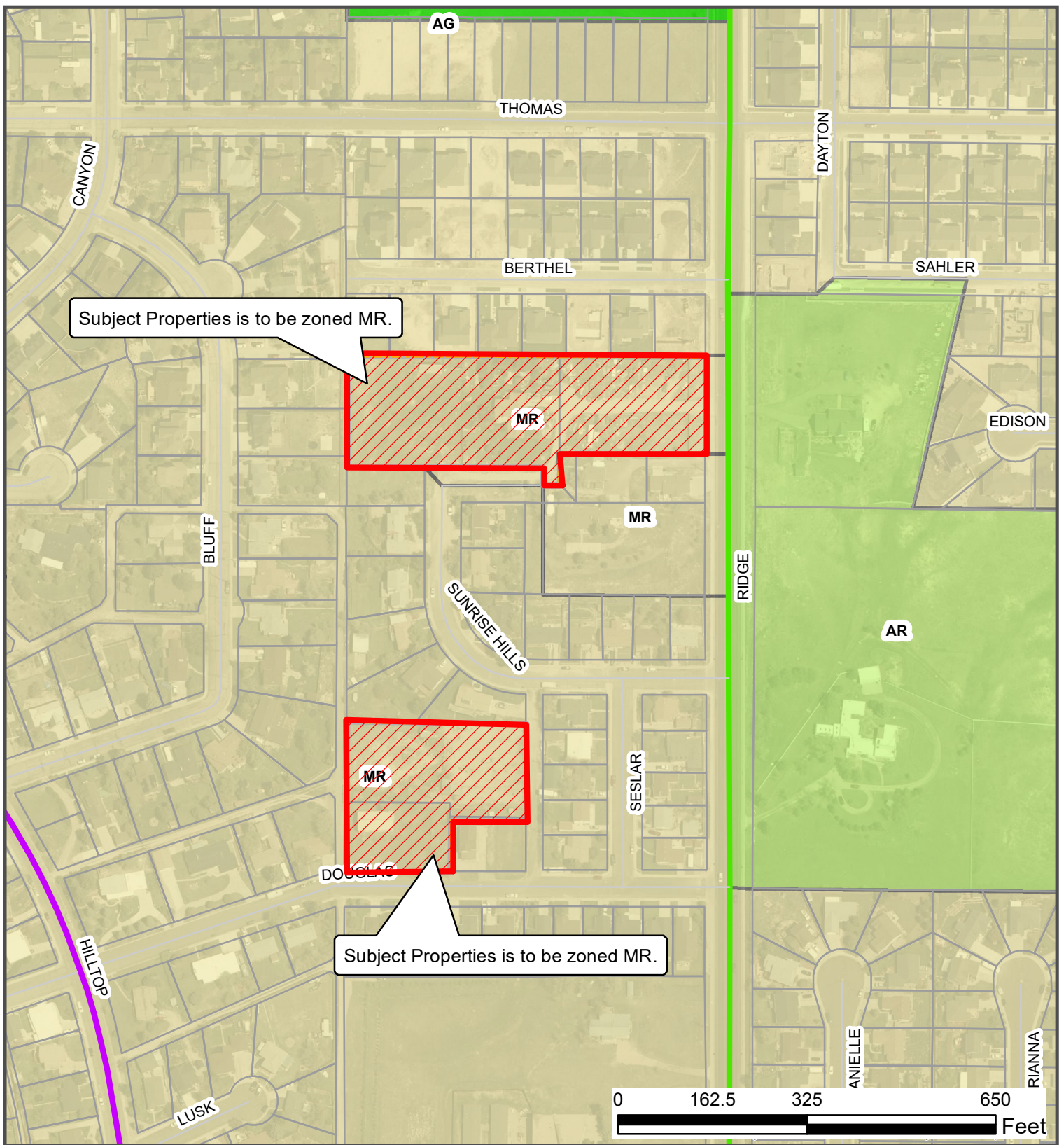


Attachment 1: Zoning Map PUDC-25-50

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt

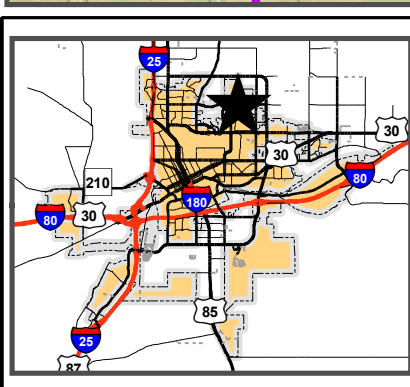
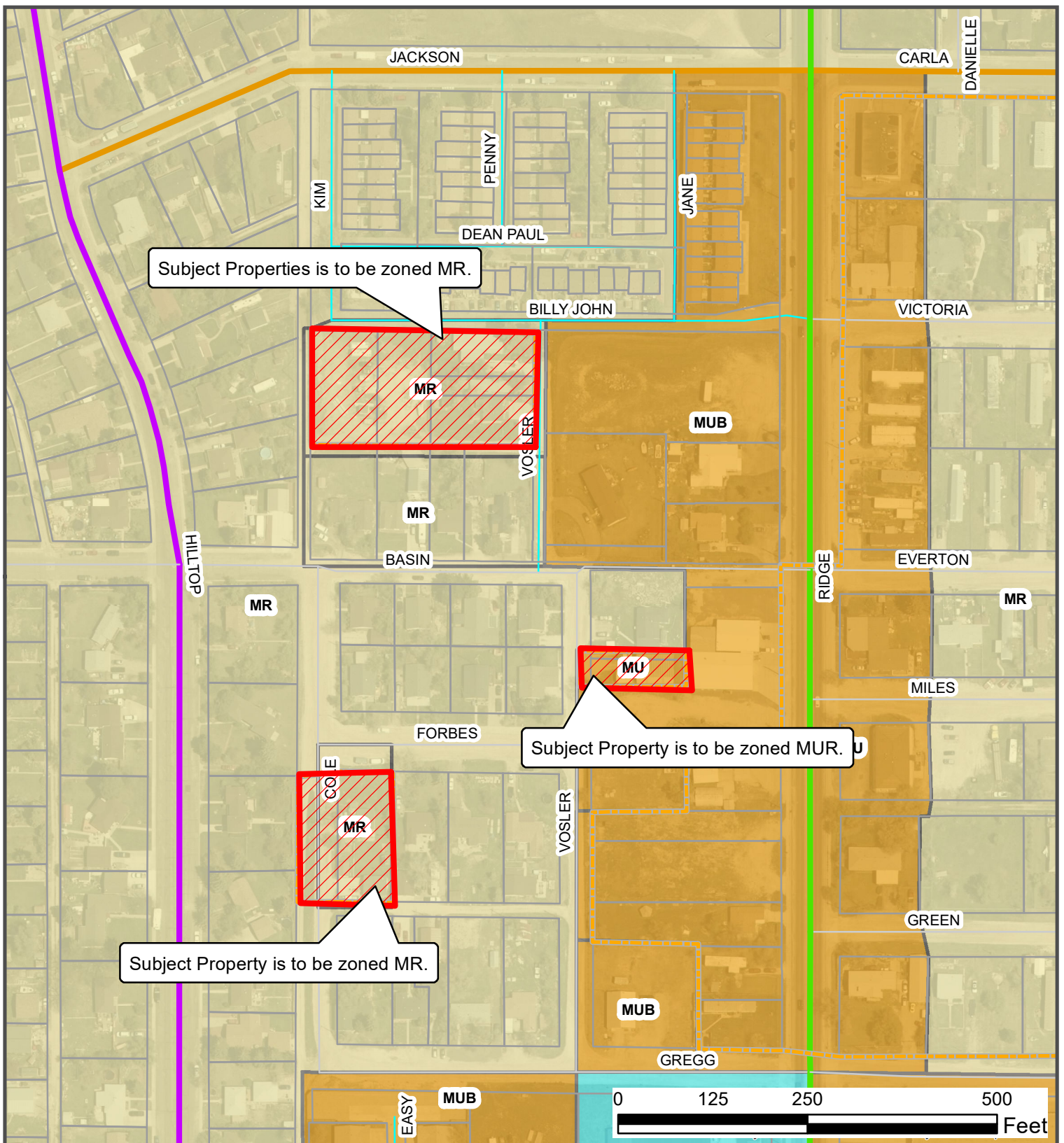


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	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



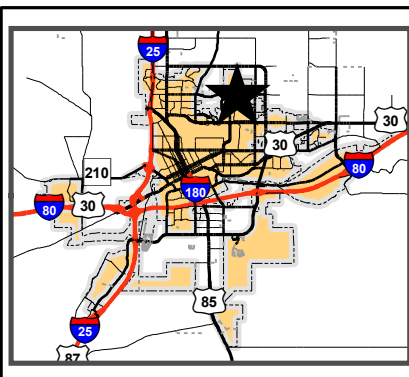
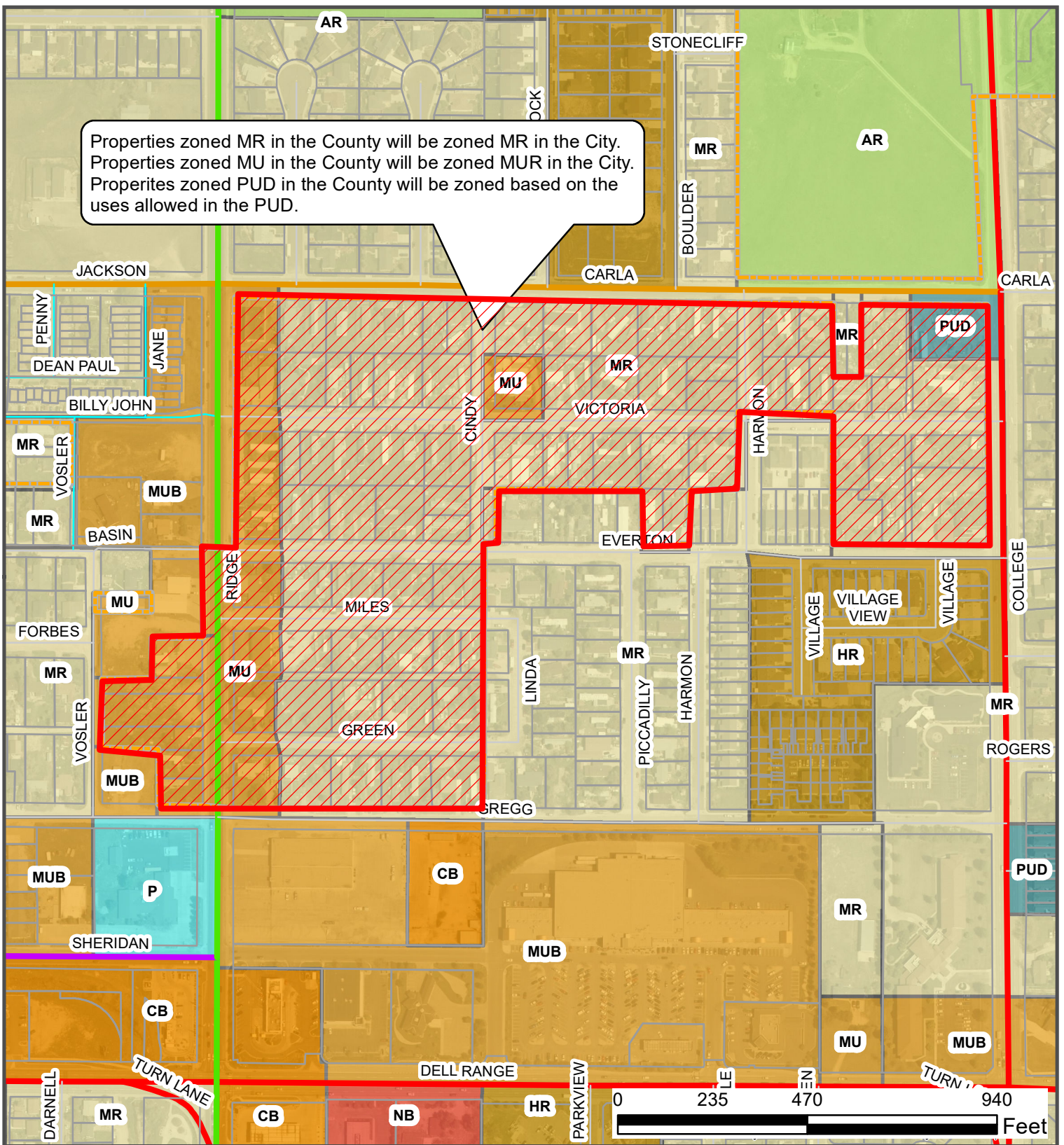
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Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt

Properties zoned MR in the County will be zoned MR in the City.
 Properties zoned MU in the County will be zoned MUR in the City.
 Properties zoned PUD in the County will be zoned based on the
 uses allowed in the PUD.



Attachment 1: Zoning Map PUDC-25-50

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Legend

- Nov19_CityLimits
- Interstate
- Principal Arterial
- Minor Arterial
- Major Collector
- Minor Collector
- Local
- Private
- Platted not built
- HR / High Density Residential
- MR / Medium Density Residential
- LR / Low Density Residential
- NR-2 / Neighborhood Residential - Med. Density
- NR-3 / Neighborhood Residential - High Density
- AR / Agricultural Residential
- A-1 / Agricultural and Rural Residential
- A-2 / Agricultural
- AG / City Agricultural
- MUR / Mixed Use Residential Emphasis
- CBD / Central Business District
- CB / Community Business
- NB / Neighborhood Business
- MU / Mixed Use - County
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- MUE / Mixed Use Employment Emphasis
- HI / Heavy Industrial
- LI / Light Industrial
- P / Public
- AD / Airport District
- PUD / Planned Unit Development
- X / Exempt



City of Cheyenne

Planning and Development Department
2101 O'Neil Avenue, Room 202 Cheyenne, WY 82001
www.cheyennecity.org/PlanningAndDevelopment

Assigned Zone Chart

Underlying County Zone	Analagous City Zone
AR - Agricultural Residential	AR - Agricultural Residential
A1 - Agricultural and Rural Residential	AG - Agriculture
A2 - Agricultural	AG - Agriculture
LR - Low Density Residential	LR - Low Density Residential
MR - Medium Density Residential	MR - Medium Density Residential
HR - High Density Residential	HR - High Density Residential
NB - Neighborhood Business	NB - Neighborhood Business
CB - Community Business	CB - Community Business
LI - Light Industrial	LI - Light Industrial
HI - Heavy Industrial	HI - Heavy Industrial
P - Public	P - Public
MU - Mixed Use	MUR - Mixed-use Residential
Zone not listed above	Based on existing uses

County A1 - AGRICULTURAL AND RURAL RESIDENTIAL
<i>Uses By Right</i>
Agriculture and uses incidental to an agricultural operation
Family child care home
Family child care centers
Home occupations
Single-family residential
Small Wind Energy Systems
Animal hospitals or clinics
Bed and breakfasts
Cemeteries
Churches, temples or other places of worship
Duplexes
Primary and secondary Schools
Roadside farm stands
Accessory living quarters
<i>Uses requiring Board Approval (Conditional Use)</i>
Commercial sales of agricultural related products, not including fuel or petroleum products
Work Camps
Any other similar use
Commercial stables, arenas, kennels, bird farms and show barns
Commercial nurseries and landscaping businesses

City AG - AGRICULTURAL
<i>Uses By Right</i>
Detached Dwelling
Animal Care - Kennel
Family Child Care Home (FCCH)
Lodging, Bed and Breakfast
Home occupations
General Agriculture
Limited Agriculture
Nurseries, landscaping
<i>Uses requiring Administrative approval</i>
Accessory Dwelling
Cemeteries
Family Child Care Center (FCCC)
Child Care Center (CCC)
<i>Uses requiring Board Approval (Conditional Use)</i>
Neighborhood Assembly (<350 maximum occupancy)
Primary and secondary schools
Assisted Living / Nursing Home
Animal Care – Hospital / Clinic
Entertainment, Outdoor Recreation Facility
Entertainment, Venue (1000+ maximum occupancy)
Entertainment, Amusement, Recreation—Other
Agricultural equipment or product sales
Commercial stables, arenas, and show barns

County MR - MEDIUM DENSITY RESIDENTIAL
<i>Uses By Right</i>
Family child care homes
Home occupations
Single-family residential
Duplexes and townhouses
Family child care center
Offices when the building area does not exceed 3,500 square feet
Residential accessory uses
Churches, temples or other places of worship
Primary and secondary schools
Multi-family residential
<i>Uses requiring Board Approval (Conditional Use)</i>
Bed and breakfasts
Dormitories
Group dwellings
Hospitals and nursing homes
Manufactured housing parks
Offices
Assisted living facilities
Accessory living quarters
Other uses similar to those permitted in this district

City MR - MEDIUM DENSITY RESIDENTIAL
<i>Uses By Right</i>
Detached Dwelling
Semi-attached Dwelling ("Duplex")
Attached Dwelling ("Townhouse")
Family Child Care Home (FCCH)
Home occupations
<i>Uses requiring Administrative approval</i>
Accessory Dwelling
Family Child Care Center (FCCC)
Utility Stations
<i>Uses requiring Board Approval (Conditional Use)</i>
Cottage Lots
Group Housing
Dormitories
Multi-dwelling Building ("Apartment")
Live/Work
Manufactured housing parks
Neighborhood Assembly (<350 maximum occupancy)
Primary and secondary schools
Community Athletic Field
Assisted Living / Nursing Home
Child Care Center (CCC)
Entertainment, Indoor Recreation Facility
Entertainment, Outdoor Recreation Facility
Lodging, Bed and Breakfast
Mini Storage
Office – Limited (<3,500)

County MU - MIXED USE
<i>Uses By Right</i>
Single family, townhouse, duplex residential
Mixed use residential developments
Family child care homes
Home occupations
Churches, temples or other places of worship
Offices
Multi-family residential
The retail sale of goods when the use is proposed in a building and the sale
Child care facilities
Assisted living facilities
<i>Uses requiring Board Approval (Conditional Use)</i>
Food service facilities
Bars, cocktail lounges and liquor stores
Other uses similar to those permitted in this district
Entertainment facilities
Outdoor storage in association with an approved use

City MUR - MIXED-USE RESIDENTIAL
<i>Uses By Right</i>
Detached Dwelling
Semi-attached Dwelling (“Duplex”)
Attached Dwelling (“Townhouse”)
Cottage Lots
Dormitories
Multi-dwelling Building (“Apartment”)
Live/Work
Mixed-use Dwelling
Assisted Living / Nursing Home
Family Child Care Home (FCCCH)
Lodging, Bed and Breakfast
Home occupations
Office – Limited (<3,500)
Food Service – Limited (under 2K)
Government Facility
<i>Uses requiring Administrative approval</i>
Accessory Dwelling
Neighborhood Assembly (<350 maximum occupancy)
Community Assembly (350 - 1000 maximum occupancy)
Cemeteries
Primary and secondary schools
Community Athletic Field
Service Business - Limited
Family Child Care Center (FCCC)
Office – general (3,500 – 20K)
Convenience Retail / Corner Store (<2k)
Neighborhood Retail (2K - 5K)
Outdoor Sales, Limited
Limited Industrial
Utility Stations

City MUR - MIXED-USE RESIDENTIAL - Continued
<i>Uses requiring Board Approval (Conditional Use)</i>
Group Housing
Urban Loft Building
Service Business - General
Child Care Center (CCC)
Entertainment, Indoor Recreation Facility
Entertainment, Outdoor Recreation Facility
Medical Care, Clinic and Office
Mini Storage
Outdoor Sales, Seasonal
Outdoor Sales, Event or Display Area

City CB - COMMUNITY BUSINESS
<i>Uses By Right</i>
Live/Work
Mixed-use Dwelling
Educational facilities
Service Business - Limited
Service Business - General
Animal Care - Kennel
Animal Care – Hospital / Clinic
Family Child Care Home (FCCH)
Family Child Care Center (FCCC)
Child Care Center (CCC)
Emergency Shelter
Entertainment, Indoor Recreation Facility
Lodging, Hotel / Motel
Medical Care, Clinic and Office
Mini Storage
Home occupations
Office – Limited (<3,500)
Office – general (3,500 – 20K)
Office – Major Office Complex (>20K)
Convenience Retail / Corner Store (<2k)
Neighborhood Retail (2K - 5K)
General Retail (5K - 25K)
Large-scale Retail (25K - 100K)
Warehouse Retail (> 100K)
Grocery Store <45K
Supermarket > 45K
Outdoor Sales, Limited
Automobile Service Repair
Automobile Service Station - Limited
Automobile Service Station - General
Food Service – Limited (under 2K)
Food Service – General (2K – 4K)

City CB - COMMUNITY BUSINESS
<i>Uses By Right</i>
Food Service – Large-scale (over 4k)
Government Facility
<i>Uses requiring Administrative approval</i>
Neighborhood Assembly (<350 maximum occupancy)
Community Assembly (350 - 1000 maximum occupancy)
Cemeteries
Primary and secondary schools
Community Athletic Field
Entertainment, Venue (1000+ maximum occupancy)
Outdoor Sales, Seasonal
Outdoor Sales, Event or Display Area
Limited Industrial
Utility Stations
<i>Uses requiring Board Approval (Conditional Use)</i>
Group Housing
Multi-dwelling Building (“Apartment”)
Urban Loft Building
Developed Athletic Field or Stadium
Assisted Living / Nursing Home
Entertainment, Outdoor Recreation Facility
Entertainment, Amusement, Recreation—Other
Outdoor Sales
Automobile Service Station – Large-scale
Data Center
Recycling Services
Transportation facilities
Nurseries, landscaping

ENTITLED: "A RESOLUTION AUTHORIZING THE CHAIRMAN OF THE BOARD OF COMMISSIONERS FOR LARAMIE COUNTY, WYOMING, AND THE COUNTY CLERK TO SIGN A ZONE CHANGE FROM DISTRICT MR-2: MEDIUM DENSITY RESIDENTIAL - DEVELOPING TO DISTRICT PUD: PLANNED UNIT DEVELOPMENT, FOR LOT 1 AND THE NORTH 22' OF LOT 2, BLOCK 1, SEAVER'S SUBDIVISION, LARAMIE COUNTY, WYOMING (A.K.A. 5110 N. COLLEGE DRIVE)."

BE IT RESOLVED BY THE BOARD OF COMMISSIONERS FOR LARAMIE COUNTY, WYOMING:

Section 1. That in accordance with Article III, of the Cheyenne and Laramie County Zoning Ordinance 1988, as amended, the establishment of zones as described in Section 30.010, the area described above is changed to District PUD: Planned Unit Development.

Section 2. That in accordance with Section 46.030 of the Cheyenne/Laramie County Zoning Ordinance 1988, as amended, the following rules shall govern this PUD Zoning Classification.

1. PRINCIPALLY PERMITTED USES:

- A. Small Business Park:
 - 1) Service business (Hair Salon, Electronic Repair, Dentist Office, etc.)
 - 2) Service business with warehouse requirements (Electrical, Garage Door or Plumbing Supply companies, etc.)
- B. Accessory buildings
- C. Residential when developed in conformance with the requirements of S. 41.400 of the Cheyenne and Laramie County Zoning Ordinance 1988, as amended.
- D. Church or community gathering place.
- E. All permitted "uses by right" designated within District CB of the Cheyenne and Laramie County Zoning Ordinance 1988, as amended.

Public Works
Planning

2. USES PERMITTED BY BOARD APPROVAL (PURSUANT TO SECTION 74.000 OF THE CHEYENNE AND LARAMIE COUNTY ZONING ORDINANCE 1988, AS AMENDED).

- A. Auto body, machine or mechanic shops
- B. Any use requiring outside storage

3. PROPERTY COVERAGE:

Total of building, parking and outside storage square footage shall not exceed 90% of the property area.

4. MAXIMUM BUILDING HEIGHT:

Maximum building heights shall conform to District CB and to Districts AHR & CHR (FAA permits for greater than 50')

5. SETBACK REQUIREMENTS:

- A. All buildings shall be set back a minimum of 25' from the property lines adjacent to streets.
- B. All buildings shall be set back a minimum of 6' from all other property lines except where easements govern.

6. SITE IMPROVEMENTS:

Shall be in compliance with the Cheyenne and Laramie County, Wyoming, Road, Street and Site, Planning and Design Standards manual.

7. SIGNAGE:

Each business may have a wall sign attached to the building it occupies.

8. PARKING:

Off street parking for each use shall conform to the Cheyenne and Laramie County Zoning Ordinance 1988, as amended and the Cheyenne and Laramie County, Wyoming, Road, Street and Site, Planning and Design Standards manual.

9. BUILDING CONSTRUCTION STANDARDS:

The building construction standards shall comply with those requirements set forth by Laramie County and the State of Wyoming at the time of construction.

10. LANDSCAPING:

Landscaping shall be installed per the approved PUD map of record.

Section 3. The County Engineer of Laramie County, Wyoming, or a designated representative, shall alter and amend the adopted Zoning map as described in Article III, Section 30.010, of the Cheyenne, and Laramie County Zoning Ordinance 1988, as amended, to comply with the change of zoning districts.

PRESENTED, READ AND ADOPTED THIS 17th DAY OF December, 1996.


JEFF KETCHUM, CHAIRMAN

ATTEST:


DEBRA K. LATHROP, COUNTY CLERK